

CASE NAME: PETITION OF:JANE DOE

HEARING ON PETITION IN RE: ORDER FROM RELIEF FROM REQUIREMENT TO PRESENT CLAIM (N25-1382)

FILED BY:

TENTATIVE RULING:

See line 22.

21. 9:00 AM CASE NUMBER: N25-1381

CASE NAME: PETITION OF:JANE DOE

HEARING ON PETITION IN RE: FOR ORDER FOR RELIEF FROM REQUEST TO PRESENT CLAIM (N25-1384)

FILED BY:

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See line 22.

22. 9:00 AM CASE NUMBER: N25-1381

CASE NAME: PETITION OF:JANE DOE

HEARING ON PETITION IN RE: FOR ORDER FOR RELIEF FROM REQUIREMENT TO PRESENT CLAIM (N25-1385)

FILED BY:

TENTATIVE RULING:

Introduction

Before the Court is Petitioners' Claims of Estate of O.Y., Claims of A.Y., Claims of W.Y., Wrongful Death Claims of A.Y. and W.Y. Motion for Relief from the Government Claims Presentation requirement.

The Court rules that **all four of Petitioner's government claims were filed timely. Accordingly, the petition is granted.**

Factual Background

On January 8, 2022, City law enforcement officers responded to a domestic disturbance report at 2201 San Jose Drive, Apt E203, Antioch, CA 94509, where O.Y. (at that time still alive), and her brother, Petitioner W.Y., resided with their biological parents, Jessika Fulcher ("Mother Fulcher") and Warren Young, Sr. ("Father Young"). ("Petition for Order for Relief from Requirement to Present Claim (Gov. Code § 946.6)," In Re Claim of the Estate of O.Y. v. City of Antioch, et al., Case No. N25-1382 ("Petition"), 1 Ex. 1, p. 1.) During this visit, the law enforcement officers allegedly witnessed indications that O.Y. and Petitioner W.Y. were unsafe and subject to abuse. Yet, the agents allegedly failed to report this discovery to Contra Costa County Child Protective Services ("CPS"), as purportedly required by the Child Abuse and Neglect Reporting Act ("CANRA"). (Petition, Ex. 1, p. 1.)

At the time of this domestic disturbance report, O.Y. and Petitioner W.Y. were wards of the juvenile court, and subject to an ongoing juvenile dependency action in this Superior Court, due to concerns of abuse and neglect by their biological parents. (Petition, Ex. 3, ¶ 4.) Several months later, in April 2022, this Superior Court closed the dependency case, and the biological parents resumed full legal authority over O.Y. and Petitioner W.Y. (Petition, Ex. 3, ¶ 4.)

On May 8, 2022, Petitioner A.Y. was born to Mother Fulcher and Father Young. (Petition, p. 5, n. 2.)

Approximately six weeks later, on June 28, 2022, City law enforcement officers responded to another domestic disturbance report at the same address. During this visit, the law enforcement officers allegedly again witnessed indications that O.Y., Petitioner W.Y., and now Petitioner A.Y., were all unsafe and subject to abuse. Nonetheless, despite these alleged signs of neglect and abuse, the agents purportedly failed again to report their findings to CPS. (Petition, Ex. 1, p. 1.)

Two months later, on August 25, 2022, City law enforcement officers and other emergency personnel responded to a “911” call made by Mother Fulcher, concerning the health of O.Y. Noting suspicious injuries to the child, medical professionals notified CPS of the matter. Later that same day, CPS removed O.Y.’s siblings from the custody of their biological parents. (Petition, Ex. 3, ¶¶ 76-79, 86.) The next day, August 26, 2022, O.Y. died due to her injuries. (Petition, p. 5.) On April 20, 2023, at the conclusion of a second dependency hearing, this Superior Court determined not to reunify Petitioners A.Y. and W.Y. with their biological parents. (Petition, Ex. 3, ¶ 88.) Instead, this Superior Court granted guardianship of the surviving siblings to their foster mother, Jane Doe. (Petition, Ex. 3, ¶ 88.) On July 10, 2024, Jane Doe formally adopted both Petitioner A.Y. and Petitioner W.Y. (Petition, pp. 5-6.) On April 30, 2025, this Superior Court appointed Jane Doe as the special administrator of Petitioner O.Y. Estate. (Petition, Ex. 4.)

Procedural Background

Pending Federal Litigation

On August 14, 2024, Attorney Schreiber filed a single, civil complaint in the Federal Court on behalf of Petitioners A.Y. and W.Y. (Petition, p. 3, Ex. 3.) The pleading raised the same general allegations as the amended GCA demand; and named several public entities and public employees as defendants, including the City. (Petition, Ex. 3, ¶¶ 15-24.) It further identified Jane Doe as the surviving sibling’s guardian ad litem. (Petition, Ex. 3, ¶¶ 13-14.) The action raised several federal claims under title 42, United States Code section 1983 (“Section 1983”), Petition, Ex. 3, ¶¶ 92-122; as well as several California state law claims, Petition, Ex. 3, ¶¶ 123-164. In bringing the State law claims, Petitioners A.Y. and W.Y. pled that they had fulfilled the GCA presentation requirement by submitting the amended GCA demand. (Petition, Ex. 3, ¶¶ 29-32.)

On September 23, 2024, the City filed a motion in the Federal Court to dismiss each of the claims raised against it in the federal litigation. (RJN, No. 4, Ex. D, p. 1.)

On January 7, 2025, the Federal Court granted the surviving siblings’ intervening request to dismiss without prejudice the federal Section 1983 claim; but otherwise, granted the City’s motion to dismiss with leave to amend. (RJN, No. 4, Ex. D, pp. 1-2.)

2023 Government Claims Act Demand

On or about August 25, 2023, Brett J. Schreiber, Esq., of Singleton Schreiber, LLP (“Attorney Schreiber”) presented a single “omnibus” GCA demand to the City on behalf of Petitioners A.Y., W.Y., and the Estate of O.Y. The demand raised claims of abuse and wrongful death on behalf of the surviving siblings, as well as a survival/pre-death pain-and-suffering claim on behalf of the estate. For the estate claim, the demand asserted that Petitioners A.Y. and W.Y. were the “personal representatives” of the

legacy. (Resp. City of Antioch's Request for Judicial Notice ("RJN"), No. 1, Ex. A.)

On September 14, 2023, the City sent a notice of insufficiency in response to the GCA claim on grounds that it failed to include statutorily required information. (RJN, No. 2, Ex. B.)

On or about September 29, 2023, Attorney Schreiber presented an amended GCA demand to the City; again, on behalf of Petitioners A.Y., W.Y., and O.Y. Estate. Jane Doe authorized Attorney Schreiber to present this amended demand. (Petition, p. 6.) The amended demand read, in pertinent part:

On or about August 26, 2022, a minor child O.Y. who was the older sibling to Claimant A.Y. and younger sibling to Claimant W.Y. died as a result of systematic failures of officers and employees of the City of Antioch, CA. ...

As a result of a series of breaches of mandatory duties and state-created danger, minor child O.Y. and her two siblings, W.Y. and A.Y., were allowed to continue in the care of their biological parents despite employees and/ or officers of the City of Antioch being aware for quite some time that the minor children were in danger within the parental home and subject to consistent abuse and neglect. ...

Claimants will seek damages for the wrongful death of their sibling O.Y. since they are the proper parties with standing to bring such claims. Similarly, as personal representatives to the Estate of O.Y., the Claimants will seek recovery for her pre-death pain and suffering. A conservative estimate for a lifetime loss of a sibling and for the pre-death pain and suffering of a child far exceeds >\$25,000 (unlimited civil claim). (RJN, No. 3, Ex. C, p. 3.)

The District did not respond to this amended demand; and as such, it was deemed rejected by operation of law, on or about November 13, 2023. (Gov't. Code § 912.4, subds. (a), (c).)

2024 Government Claims Act Demand

On December 6, 2024, Attorney Schreiber presented the City three, additional GCA demands on behalf of Petitioners; each accompanied by an application to present the late claims:

1. A GCA demand on behalf of Petitioner A.Y. seeking damages for the personal injuries she allegedly suffered from purported abuse by her biological parents, RJN, No. 7, Ex. G [Exhibit 1];
2. A GCA demand on behalf of Petitioner W.Y. seeking damages for the personal injuries he allegedly suffered from purported abuse by his biological parents, RJN, No. 5, Ex. E [Exhibit 1]; and
3. A GCA demand on behalf of Petitioners A.Y., W.Y., O.Y. Estate, with the surviving siblings personally seeking damages for the alleged wrongful death of their sister, and additionally seeking damages on behalf of the estate in their "personal representative capacity" for the personal injuries suffered by O.Y. prior to her death, RJN, No. 8, Ex. H [Exhibit 1].

For all practical purposes, this second round of "separate" GCA demands are substantively identical to

the original, “omnibus” 2023 administrative claim, but for providing additional, factual detail. For example, the new GCA demand presented on behalf of Petitioner W.Y. reads, in pertinent part:

On January 8, 2022, Officers Robert Ibanez and Shawn Marquez of the Antioch Police Department, and other currently unknown officers and/ or employees of the City of Antioch, responded to a domestic disturbance report at 2201 San Jose Drive, Apt E203, Antioch, CA 94509, where Claimant resided with his biological parents and younger sister, O.Y. At this time, Claimant was a ward of the juvenile court and subject to an ongoing juvenile dependency action due to concerns of abuse and neglect by his biological parents. Despite indications that Claimant and O.Y. were unsafe and subject to abuse by the biological parents, the officers failed to cross-report these suspicions to Child Protective Services, as mandated under California's Child Abuse and Neglect Reporting Act (CANRA).

On June 28, 2022, Officers Kyle Smith and Shane Cole of the Antioch Police Department, and other currently unknown officers and/ or employees of the City of Antioch, responded to another domestic disturbance report at the same address at 2201 San Jose Drive, Apt E203, Antioch, CA 94509. Despite further indications that Claimant, O.Y., and now their newborn sister, A.Y., were unsafe and subject to abuse by the biological parents, the officers failed to cross-report these suspicions of child abuse to Child Protective Services, as required by CANRA. (RJN, No. 5, Ex. E, p. 1.)

The other two, new GCA demands read similarly. (RJN, No. 7, Ex. G [Exhibit 1]; No. 8, Ex. H [Exhibit 1].) Thus, where the original, “omnibus” 2023 GCA demand vaguely alleged “a series of breaches of mandatory duties and state-created danger,” the subsequent, “separate” 2024 GCA demands provide more detail as to the mandatory duties which were allegedly violated.

On January 9, 2025, the City denied each of the “separate” GCA demands as untimely; and further denied the related applications to present the late claims. (RJN, No. 5, Ex. E [Exhibit 2]; No. 7, Ex. G [Exhibit 2]; No. 8, Ex. H [Exhibit 2].)

Legal Standard

Pursuant to Govt. Code §§ 905, 910 and 911.2, a claim against a public entity for money or damages for death or for injury to person or to personal property shall be presented within six months after the accrual of the cause of action.

Govt. Code 911.4 provides:

(a) When a claim that is required by Section 911.2 to be presented not later than six months after the accrual of the cause of action is not presented within that time, a written application may be made to the public entity for leave to present that claim.

(b) The application shall be presented to the public entity as provided in Article 2 (commencing with Section 915) within a reasonable time not to exceed one year after the accrual of the cause of action and shall state the reason for the delay in presenting the claim.

The proposed claim shall be attached to the application.

(c) In computing the one-year period under subdivision (b), the following shall apply:

(1) The time during which the person who sustained the alleged injury, damage, or loss as a minor shall be counted, but the time during which he or she ... does not have a guardian or conservator of his or her person shall not be counted.

Pursuant to Govt. Code § 945.4: "Except as provided in Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented ... until a written claim therefor has been presented to the public entity and has been acted upon by the board."

Govt. Code 946.6 provides:

If an application for leave to present a claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the petitioner from Section 945.4. ...

...

(c) The court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4 and was denied or deemed denied pursuant to Section 911.6 and that one or more of the following is applicable:

...

(3) The person who sustained the alleged injury, damage, or loss was a minor during any of the time specified in Section 911.2 for the presentation of the claim, provided the application is presented within six months of the person turning 18 years of age or a year after the claim accrues, whichever occurs first.

...

(6) The person who sustained the alleged injury, damage, or loss died before the expiration of the time specified in Section 911.2 for the presentation of the claim.

For minors, accrual is based not on the minor's knowledge, but on that of a parent or guardian legally capable of representing the minor's interests. (*Whitfield v. Roth* (1974) 10 Cal3d 874, 885.) If the minor has no such representative, his deadline to present an application to file a late claim is tolled. (*County of L.A. v. Sup. Ct.* (2001) 91 Cal.App.4th 1303, 1313.) "A trial court has broad discretion in ruling on a petition for relief from the claim-filing requirement as long as the issue is whether the late claim was presented within a 'reasonable time' not to exceed one year after the accrual of the cause of action." (*Ibid.*) Where a minor's youth and immaturity prevent him from recognizing the wrongfulness of his abuse, courts have applied the equitable delayed discovery rule to toll accrual of

the deadline to present a government claim. (*Curtis T. v. County of L.A.* (2004) 123 Cal.App.4th 1405, 1422-1423.)

The court in *County of L.A.* explained with respect to minors that are in foster care:

“[The m]inors' parents had no legal right to custody and control of Minors [during the pendency of] the dependency case Officially, as dependent minors, Minors' legal custody and control was in the hands, metaphorically speaking, of the juvenile court, and, practically speaking, the juvenile court simply cannot personally monitor all the needs of the many dependents under its custody and control. It relies on the County, through the DCFS to discharge that function. It is patently obvious, however, that DCFS, as the department of County responsible for the proper care of Minors, was not a proper agency to ... investigate and consider whether to file litigation against such agency.” (*County of L.A. v. Sup. Ct.* (2001) 91 Cal.App.4th 1303, 1310.)

“[Prior] cases only penalize minors under the care of an authorized representative, in other words, a parent or a guardian, when such representative has knowledge concerning the claim but fails to present the claim within the one-year limitation period of section 911.4.” (*Id.* at 1316.)

“[C]ases that indicate that the Legislature intends to accord special solicitude to the claims of an injured minor by requiring courts to protect minors from the neglect or ignorance of the adults in charge of their legal claims ‘so long as the application is filed with the entity within one year of the accrual of the cause of action,’ and so long as there is actually an adult specifically charged with protecting the minors' overall interests above all else. ... this holding is in keeping with the Legislature's recent amendment of section 911.4 ... that recognizes the special problems faced by minors who are dependents of the juvenile court during the time that they may have reason to file a tort claim.” (*County of L.A. v. Sup. Ct.* (2001) 91 Cal.App.4th 1303, 1316.)

In proceeding on a petition for relief, the petitioner bears the burden of proving two elements by a preponderance of the evidence: first, that his or her application to the public entity for leave to file a late claim was presented within a reasonable time, not to exceed that specified in subdivision (b) of Section 911.4; and second, that one of four statutory grounds on which the court may grant relief is present. (*Rivera v. City of Carson* (1981) 117 Cal.App.3d 718, 723.)

Analysis

Petitioner's Government Claims Were Timely Filed from the Outset

Petitioners seek to recover damages for the wrongful death of their minor sibling, O.Y. Petitioners allege that damages arose, in part, from the state created danger and breaches of the mandatory duties set forth in the California Child Abuse and Neglect Reporting Act (CANRA) caused by Respondent City of Antioch and the Antioch Police Department because officers failed to take appropriate action in response to signs of abuse and neglect. As a result, the minor children remained in their biological parents' custody where they continued to suffer physical abuse and neglect. On August 26, 2022, O.Y. died due to the abuse. That same day, Petitioners were removed from the

custody of their biological parents. The causes of action for the alleged damages accrued the day O.Y. passed away on August 26, 2022.

2024 Government Claims

Petitioners contend that their December 9, 2024, government claims were timely presented pursuant to the equitable delayed discovery rule. This Court agrees.

For minors, accrual is based not on the minor's knowledge, but on that of a parent or guardian legally capable of representing the minor's interests. (*Whitfield v. Roth* (1974) 10 Cal.3d 874, 885.) If the minor has no such representative, his deadline to present an application to file a late claim is tolled. (*County of L.A. v. Superior Court* (2001) 91 Cal.App.4th 1303, 1313.)

On the date of O.Y.'s death, Petitioners became juvenile court dependents and were without a parent or guardian legally capable of representing their interests in a civil action until their eventual adoption. (Exhibit 3, at ¶ 32.) Although Jane Doe learned of Respondent's liability prior to Petitioners' adoption, she lacked legal authority to initiate a wrongful death lawsuit on their behalf until the adoption.

Jane Doe did not adopt AY and WY until July 10, 2024. On that date, Jane Doe became the first legally authorized representative with both the knowledge and capacity to initiate legal action on Petitioners' behalf. (Koh Decl. at ¶ 3.) Petitioners' three government claims for A.Y., W.Y., and A.Y. and W.Y.'s joint claim for wrongful death of their sibling were filed five months later on December 9, 2024. Petitioners' December 9, 2024, government claims were submitted timely.

2023 Government Claim

Petitioners contend that their September 29, 2023, government claim was timely presented pursuant to the equitable delayed discovery rule. This Court agrees.

The same tolling argument explained above applies to the 2023 government claim submitted on behalf of A.Y. and W.Y. for the wrongful Death of their sibling O.Y., through their foster parent at the time, Jane Doe. (Koh Decl., at ¶ 2.) In this case, the government claim was submitted before the end of the tolling period when Jane Doe adopted A.Y. and W.Y. on July 10, 2024.

No Overlap with the Federal Court Motion to Dismiss

Respondent City of Antioch posits that Petitioners seek a "second bite of the apple" to improperly effectuate a motion for reconsideration with the Federal Court. (Oppo at p. 7: 4-5.) The Court is not convinced.

As mentioned above, on January 7, 2025, the Federal Court granted the surviving siblings' intervening request to dismiss without prejudice the federal Section 1983 claim; but otherwise, granted the City's motion to dismiss with leave to amend. (RJN, No. 4, Ex. D, pp. 1-2.) The ruling regarding the City of Antioch's Motion to Dismiss focused on issue of standing of siblings A.Y. and W.Y. for their survival claim and the sufficiency of the pleading of Petitioners' 42 U.S.C. § 1983 state created danger claim. Notably the Federal Court did not substantively address the government claim presentation issue, although it did have a subsection titled "Compliance with the California Tort Claim Act" describing the

facts alleged in the Complaint. (See Resp.'s RJN, No. 4, Ex. D, p. 8.)

Jane Doe Does Not Need to File a Separate Claim with the City

Respondent City of Antioch argues that at no point has Jane Doe ever presented a GCA demand, nor an application to file a late claim with the City. (Oppo at p. 9: 6-7.) Yet Respondent makes this argument in the context of the individual claims of A.Y. and W.Y. and the joint claim for both A.Y. and W.Y. to prosecute their own wrongful death claims. Since Jane Doe is filing the claims on behalf of her adopted children A.Y. and W.Y. and as the special administrator to the Estate of the Decedent O.Y., the Court does not find it necessary for Jane Doe to file a GCA demand in her individual capacity if she is not seeking damages for herself.

Conclusion

For the reasons analyzed above, Court rules that **all four of Petitioner's government claims were filed timely. Accordingly, the petition is granted.**